

MWANCHA SENIOR COMMUNITY (MSC)

Institutional Eldercare & Social Protection Repository • Kenya

CIVIC LEGAL GUIDE

Handbook on Senior Citizen Rights & Safeguards in Kenya

A Citizen's Guide to the Kenyan Constitution (Article 57), Succession Law, and Human Rights

Author: MSC Legal & Advocacy Committee

Role: Civic Education & Rights Advocacy

Publication Date: October 2024 • ISBN 978-9966-821-08-9

EXECUTIVE ABSTRACT & SUMMARY

An accessible legal and civic handbook explaining constitutional protections for older persons under Kenyan law, succession procedures, defense against unfair property seizure, and grievance reporting mechanisms.

Section 1: Article 57 of the Constitution of Kenya

Article 57 specifically commands the State to take legislative and policy measures ensuring older persons: (a) participate fully in society, (b) pursue personal development, (c) live in dignity, respect, and free from abuse, and (d) receive reasonable care and assistance from family and the State.

Section 2: Safeguarding Land & Family Inheritance

Elderly widows and frail grandparents are most vulnerable to fraudulent land transfers and coerced signatures. This guide outlines how title deeds can be registered with family cautions and caveats at county land registries to prevent illegal dispossession.

Section 3: Reporting Abuse & Accessing Emergency Relief

Provides emergency hotline numbers, police gender & vulnerable persons desks, and MSC field coordination hotlines for immediate community response.

About Mwanacha Senior Community (MSC)

Mwanacha Senior Community (MSC), founded in 2016 as Mwanacha Home for the Elderly and legally registered under the Societies Act of Kenya, is dedicated to defending the dignity, health, and holistic wellbeing of vulnerable older persons in Kenya.

Through our community care center and network of 40 active ward-based volunteers across Nyamira and Kisii counties, MSC delivers compassionate home check-ins, medical escorts, emergency nutrition, and legal defense against elder abuse and property dispossession.

For inquiries, partnerships, or academic citation permissions, please contact:

Headquarters: Mwanacha House - Ekerenyo, Ekerenyo-Obwari-Magwagwa Road, Nyamira North, Nyamira County, Kenya

Postal Address: P.O. Box 162-40506 Ekerenyo-Nyamira, Kenya

Email: mwachahomeforelderly@gmail.com / mwanchacommunity.seniors.com

Website: <https://mwancha.org>